



File No.: EXP202311296

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On November 24, 2022, the Director of the Spanish Agency for the Protection of Data issued a resolution in the sanctioning procedure of file number EXP202204726, followed against A.A.A. (hereinafter, the complained party). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER Mr. A.A.A. to, pursuant to Article 58.2 d) of the GDPR, within ten working days, adopt the following measures:

- Provide evidence of having removed the camera in question, submitting documentary proof with date and time that verifies this fact, or, alternatively, provide evidence of the regularization of the camera, in accordance with current regulations and that it does not record the property of the complained party.”

SECOND: After two unsuccessful attempts to deliver the postal notification of the resolution of the sanctioning procedure, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP, hereinafter), the notification was made by means of an announcement published in the Official State Gazette dated December 30, 2022. In this resolution, the complained party was granted a period of 10 working days to adopt the imposed measures, as evidenced in the file.

THIRD: After the expiration of the indicated period without any written communication having been received by this Agency regarding the measures implemented by the complained party, they were again required on three occasions to provide evidence within ten working days to this Agency that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

These requirements were returned to sender by the postal service on March 16, May 19, and July 19, 2023, as they were not collected from the office after two failed delivery attempts, as evidenced by the acknowledgments of receipt in the file.

FOURTH: On June 30, 2023, a new requirement was sent for compliance with the Resolution within ten working days, which was returned to sender as unknown on July 13, 2023, despite having previously verified the shipping address by all means available to this Agency, coinciding the address of the infringement with the registered and tax address of the complained party.

FIFTH: On March 17 and July 4, 2023, with entry registration numbers REGAGE23e00018308808 and REGAGE23e00044423909, the complained party submitted writings indicating that the complained party had not attended to the requirements of this Agency.

SIXTH: On July 6, 2023, with an outgoing registration date and registration number REGAGE23s00045271736, as a supplement to the previous notifications, a new communication of the requirement for compliance with the aforementioned Resolution was sent to the complained party at their address by ordinary postal mail, to be deposited in their mailbox.

SEVENTH: The complained party has not sent any response to this Agency that evidences compliance with the imposed measures.

EIGHTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

NINTH: On September 18, 2023, the Director of the Spanish Agency for the Protection of Data agreed

to initiate a sanctioning procedure against the complained party for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR.

TENTH: The agreement to initiate the present sanctioning procedure was notified to the complained party, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated October 17, 2023, after two unsuccessful attempts at postal notification, as evidenced in the file.

ELEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the established period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance with the measures imposed therein, indicated in the antecedents first to fourth, were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not submitted any response to this Agency that proves compliance with the imposed measures.

THIRD: The agreement to initiate the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated October 17, 2023, after two unsuccessful delivery attempts at the postal address.

FOURTH: The respondent has not presented any allegations to the agreement to initiate this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the available evidence, it is considered that the respondent has failed to comply with the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them.

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Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 400.00 euros.

V

Adoption of Measures

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This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the

provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 400.00 euros (FOUR HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, to provide evidence to this agency of the adoption of all measures ordered in the resolution of the sanctioning procedure of file number EXP202204726 within 10 business days from the notification of this Resolution.

THIRD: TO NOTIFY this resolution to A.A.A..

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A..

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be

considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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